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File No.: EXP202300015
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RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On December 20, 2022, a complaint was filed with the Spanish Agency for Data Protection.

The reasons for the complaint are as follows:

The complainant claims for the publication of three videos, featuring her minor daughter, without her consent, on the website xvideos.es. The videos, of a sexual nature, were published on the profile of the user "****USUARIO.1" (**URL.1) four years ago:

- Video 1, titled: (...)
- Video 2, titled: (...)
- Video 3, titled: (...).

SECOND: On January 4, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was accepted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

From this Agency, the following evidence of the reported content is captured:

- A screenshot of the portal xvideos.com with the videos published by the user "****USUARIO.1" as of January 3, 2023, among which the reported videos appear.
- A screenshot of the xvideos.com website evidencing the publication of each of the reported videos, as of January 3, 2023.
- The reported videos themselves.

On January 4, 2023, a request was made for the removal of the videos, directed to the information service provider and responsible for the xvideos.com website where the reported videos are uploaded. To this end, a form available on the portal itself was used so that anyone could report abusive content. The website is accessible from any of the following domains www.xvideos.es and www.xvideos.com. According to the privacy policy published on the portal itself, the responsible party and provider of the site is WebGroup Czech Republic, a.s., a company established in the Czech Republic. The policy includes the following text:

We, the company WebGroup Czech Republic, a.s., registered and existing under the laws of the Czech Republic, NIF: 291 45 465, with registered office at Krakovská 1366/25, 110 00 Praha 1, Czech Republic (hereinafter, "WebGroup" or "we"), the provider of the website www.xvideos.com (hereinafter, "Website"), are the data controller in the sense of the provisions of Article 4, paragraph 7) of Regulation (EU) 2016/679 of the European Parliament and of the Council regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation - "GDPR").

On January 10, 2023, a request for information was made to the intermediary service provider and supplier of the portal www.xvideos.es (WebGroup Czech Republic, a.s) with the following content:

1. Informing of the complaint received regarding the unlawful publication of the three sexual videos by the user "****USUARIO.1".
2. Requesting collaboration to send us identifying information of this user profile and the IP address from which the publication was made.

On February 6, 2023, an email was received from the address content@xvideos.com responding to the measure sent through the portal's form. The content of this email is as follows:

"(...)"

With the following unofficial translation:

«(...)»

On the same date, February 6, 2023, it was verified that the videos had been removed from the website.

As of March 7, 2023, after not receiving a response to the request for collaboration from the intermediary service provider, a second attempt was made reiterating the request and simultaneously sending an email to the contact address of the Data Protection Officer published on the portal itself (dpo@xvideos.com), informing of the request sent.

No response has been received to either of the two previous requests from the intermediary service provider and responsible for the xvideos.com website, with acknowledgment of receipt dated in both notifications.

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3/6

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Conditions for Consent

Regarding the conditions for consent, Article 7 of the GDPR provides:

"1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data.

2. If the consent of the data subject is given in the context of a written declaration that also relates to other matters, the request for consent shall be presented in such a way that it is clearly distinguishable from other matters, in an intelligible and easily accessible form and using clear and plain language. No part of the declaration that constitutes a breach of this Regulation shall be binding.

3. The data subject shall have the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. Before giving consent, the data subject shall be informed thereof. It shall be as easy to withdraw consent as to give it.

4. In assessing whether consent has been freely given, account shall be taken, as far as possible, of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

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4/6

III

Legitimacy for Processing

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, alignment, combination, restriction, erasure or destruction."

Including images that identify or make identifiable a person in published videos constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to complaint, the usual legitimizing ground is consent, in general. And it is the person who uploads the personal data and images that can be viewed without any limitation who must demonstrate that they have that consent; if it concerns a minor, the consent should be provided by the holders of parental authority or guardianship.

For this processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in paragraph f) shall not apply to processing carried out by public authorities in the performance of their tasks."

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5/6

IV

Conclusion

To identify the person or persons who were publishing the images, preliminary investigative actions were carried out, as established by Article 67 of the LOPDGDD, which states the following:

<<1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been accepted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure. The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed a duration of twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.>>

After conducting the investigations mentioned in the Facts, the following has been concluded:

At the time of initiating the investigative actions, the videos subject to the complaint were published.

The removal of the videos from the portal where they were published has been achieved. After requesting information from the service provider and responsible for the website xvideos.com on two occasions, no response has been received, so it is not possible to identify the individuals responsible for the publication.

Thus, as it has not been possible to attribute responsibility for the processing in the publication of the images, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present actions.

SECOND: TO NOTIFY this resolution to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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6/6

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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